

## 25TRCV02421 25TRCV02421

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-30

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Case Number: 25TRCV02421 Hearing Date: June 30, 2026 Dept: E

Superior Court  
of California

County of Los  
Angeles

Southwest  
District

Torrance Dept. E

PETRA  
POLINKOVA, an Individual,

Plaintiff,

Case No.:

25TRCV02421

vs.

[Tentative]  
Sustained

BARSHAY  
AND PETERS MANAGEMENT COMPANY, INC., a California corporation; ADAM BARSHAY,  
an Individual; LIONEL PETERS, an Individual; BRIANNA MCSWAIN, an Individual;

CHARLOTTE ECKER, an Individual; TERUNOBU MAEZAWA, an Individual; LIU FANG MAEZAWA, an Individual; AKIRA MAEZAWA, an Individual; CHRISTOPHER TOMOHIKO ETO, an Individual; REBECCA HIRSCH, an Individual; and DOES 1-50,

Defendant.

Hearing

Date: June

30, 2026

Moving Parties: Defendant Christopher Tomohiro Eto

Responding Party: N/A

HEARING: Demurrer

The

Court considered the moving papers.

RULING

The Court sustains the

Demurrer with leave to amend.

BACKGROUND

On July

22, 2026, Plaintiff Petra Polinkova filed the Complaint against Defendants

Barshay and Peters Management Company, Adam Barshay, Lionel Peters, Brianna McSwain, Charlotte Ecker, Terunobu Maezawa, Liu Fang Maezawa, Akira Maezawa, Christoper Tomohiko Eto, and Rebecca Hirsch, alleging causes of action for negligence, private nuisance, breach of the implied warranty of habitability, breach of the implied covenant of peaceful and quiet enjoyment, unlawful eviction, harassment, invasion of privacy, civil RICO, and IIED.

On March 30, 2026,

Defendant Christopher Tomohiro Eto filed the Demurrer.

No opposition has been

filed.

## JUDICIAL

## NOTICE

The Court may take judicial notice of records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States. (Evid. Code § 452 subd. (d).) The Court may also take judicial notice of "Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." (Evid. Code § 452 subd. (c).)

Defendant requests that the Court take judicial notice of the Complaint filed in LASC case no.24IWUD02070. The Court grants this request pursuant to Evidence Code section 452 subd. (c).

## LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of

California, Inc. (1993) 14 Cal.App.4th 612, 616.)

## DISCUSSION

Meet  
and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

Here, Defendant has filed a form meet and confer declaration. Therefore, the Court finds that Defendant has satisfied the meet and confer requirements.

Defendant Christopher Tomohiro Eto demurs to the Complaint in its entirety.

Lack of a contractual relationship

Defendant argues the third, fourth, fifth, and sixth causes of action are improper because each depends on the existence of a residential lease relationship between Defendant and Plaintiff, and no such relationship exists or can be alleged based on the complaint's own allegations. Defendant contends the implied warranty of habitability and covenant of quiet enjoyment arise out of implied terms in a lease agreement, and the unlawful eviction and harassment claims under Civil Code sections 1946.2 and 1940.2 similarly require a landlord-tenant relationship. Defendant argues the Complaint itself forecloses any such relationship, as paragraph 6 identifies other persons as the Owners of the subject property and paragraph 10 expressly alleges that Plaintiff's lease agreement is with the Owners, not with Defendant.

Causes of action for breach of the implied warranty of habitability, breach of the implied covenant of peaceful and quiet enjoyment, unlawful eviction, and harassment require a landlord-tenant relationship. (See *Green v. Superior Court* (1974) 10 Cal.3d 616, 629; *Ginsberg v. Gamson* (2012) 205 Cal. App.4th 873, 896-897; Civ. Code § 1946.2; Civ.

Code § 1940.2.)

Here, the Complaint fails to allege any contract or landlord-tenant relationship between Plaintiff and Defendant.

Therefore, the Court sustains the demurrer as to the third, fourth, fifth, and sixth causes of action with leave to amend.

Cause of Action 1 and 2 – Negligence and Private Nuisance

Defendant argues that both the negligence and private nuisance causes of action fail because they share the same foundational deficiency, the absence of a legal duty owed to Plaintiff. Defendant contends that duty is a threshold element of both claims, and that paragraph 7 of the complaint, which states that Defendant represented the Owners, affirmatively negates any duty running to Plaintiff while at most suggesting a duty owed to the Owners themselves.

Defendant is incorrect in asserting that a private nuisance claim requires duty. (See *San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 937-939.) Furthermore, everyone has a duty to act with reasonable care in the management of his person and property. (Civ. Code, § 1714.) Here, however, the only mention of Defendant in the Complaint is that Defendant is a real estate broker who represented the owners of the subject property. (Complaint ¶ 7.) The Complaint does not allege any actions taken by Defendant that caused a breach of duty or created a nuisance. Consequently, the Court finds that Plaintiff has failed to allege the elements of a cause of action for negligence or private nuisance.

Therefore, the Court sustains the demurrer as to the first and second causes of action with leave to amend.

Cause of Action 7 – Invasion of Privacy

For a claim of invasion of privacy, “the complaining party must meet three threshold elements ... utilized to screen out claims that do not involve a significant intrusion on a privacy interest protected by the state constitutional privacy provision. The party must demonstrate (1) a legally protected privacy interest;

(2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy. This initial inquiry is necessary to permit courts to weed out claims that involve so insignificant or de minimis an intrusion on a constitutionally protected privacy interest as not even to require an explanation or justification by the defendant.” (Lewis v. Superior Court (2017) 3 Cal.5th 561, 571. “Second, if a claimant satisfies the threshold inquiry, [a] defendant may prevail in a state constitutional privacy case by negating any of the three elements just discussed or by pleading and proving, as an affirmative defense, that the invasion of privacy is justified because it substantively furthers one or more countervailing interests. The plaintiff, in turn, may rebut a defendant's assertion of countervailing interests by showing there are feasible and effective alternatives to defendant's conduct which have a lesser impact on privacy interests.” (Ibid.)

Defendant argues that

the sole alleged conduct attributable to Defendant is the use of video and audio recordings in the unlawful detainer action identified as Case No. 24IWUD02070, but that this allegation is demonstrably false because the judicial notice records of that action establish Defendant was not the plaintiff in that proceeding and therefore could not have used any recording in it.

Defendant further argues the complaint's own

allegations defeat any reasonable expectation of privacy as to the recordings at issue. Defendant contends that a camera pointed at Plaintiff's front door, capturing entries, exits, and audio audible from outside the residence, does not constitute an intrusion into a private place, conversation, or matter. Defendant argues that exterior areas of a residence and sounds audible from outside cannot give rise to a reasonable expectation of privacy, particularly in an apartment building setting with nearby neighbors, and that the prevalence of doorbell and security cameras reflects rather than violates prevailing social norms.

Here, the Complaint does not allege that

Defendant created the subject video or audio recording, and receiving the fruits of an intrusion of privacy is not an intrusion of privacy on its own.

(See, Marich v. MGM/UA Telecommunications, Inc. (2003) 113 Cal.App.4th 415, 431-432.)

Therefore, the Court  
sustains the Demurrer as to the seventh cause of action with leave to amend.

#### Cause of Action 8 – Civil RICO

“The elements of a civil RICO cause of action  
have been variously stated and in fact differ according to the type of  
prohibited activity alleged. In general, however, the plaintiff must prove that  
the defendant caused injury to the plaintiff's business or property by engaging  
in a pattern of racketeering activity in connection with an enterprise which  
affects interstate commerce.” (Gervase v. Superior Court (1995) 31  
Cal.App.4th 1218, 1232.)

Defendant argues the civil RICO cause of  
action fails because the complaint does not adequately allege any predicate act  
listed under 18 United States Code section 1961(1), which is a prerequisite to  
maintaining a civil RICO claim.

On the alleged Penal Code section 632  
violation, Defendant argues this predicate act fails for the same reasons the  
invasion of privacy cause of action fails, namely that Defendant was not a  
plaintiff in the unlawful detainer action and therefore could not have used any  
recordings in that proceeding, and that conversations audible from outside a  
residence captured by an exterior camera cannot constitute confidential  
communications as required by section 632.

On the alleged wire fraud predicate act,  
Defendant argues that the Complaint fails to plead the required elements of 18  
United States Code section 1343. Defendant contends there is no allegation of  
transmission through interstate or foreign commerce, as the only alleged  
transmission is that the recordings were physically provided to someone. Defendant  
further argues there are no allegations of obtaining money or property through  
false or fraudulent pretenses, and that fraud must be pleaded with particularity,  
showing how, when, where, to whom, and by what means the representations were  
made. Defendant contends the Complaint contains no allegations that the  
unlawful detainer action was fraudulent or false, and that characterizing a  
lost lawsuit as wire fraud would absurdly expose every unsuccessful plaintiff  
to federal prosecution. Defendant also notes that the incorporated negligence  
allegations in paragraph 22, which characterize Defendants' conduct as  
negligent rather than fraudulent, directly contradict the fraud theory

underlying the RICO claim.

Here, the Court has already found that

Defendant's alleged actions did not constitute an invasion of privacy because he did not create the subject audio or video files. Furthermore, the Complaint does not allege any actions Defendant took that could be described as fraudulent, as required for a wire fraud conviction. (18 U.S.C.A. § 1343.)

Therefore, the Court sustains the Demurrer as to the eighth cause of action with leave to amend

Cause of Action 9 – IIED

To succeed on a

cause of action for IIED, the plaintiff must prove outrageous conduct by the defendant that is the actual and proximate cause of the plaintiff's severe emotional distress. (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.)

Defendant argues

the complaint does not identify the specific conduct by Defendant intended to cause emotional distress, relying instead on generalized allegations against all defendants collectively in paragraph 57, thereby rendering the cause of action fatally uncertain. Defendant further contends that the Complaint's predominant characterization of Defendant's conduct as negligent directly undermines any allegation of intentional conduct and compounds the pleading deficiency.

Defendant also

argues the allegations fall far short of the standard requiring conduct so extreme as to exceed all possible bounds of decency and be utterly intolerable in a civilized community.

To state a cause of

action for IIED Plaintiff must plead "with great specificity the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 161.)

Here, the Complaint

does not include any actions attributed to Defendant which are so extreme as to exceed all bounds of that usually tolerated in a civilized society.

Therefore, the

Court sustains the Demurrer as to the ninth cause of action with leave to amend.